

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF SEMENOV AND OTHERS v. RUSSIA

(Applications nos. 74086/16 and 18 others –
see appended list)

JUDGMENT

STRASBOURG

12 January 2023

This judgment is final but it may be subject to editorial revision.



In the case of Semenov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 8 December 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the cases are set out in the appended table.

4. On the different dates, the applicants were taken to police stations as administrative suspects of offences related to public events. They were subsequently administratively convicted for participation in different public events.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law (...):
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; (...)"

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, and *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018), and that the use of the escort measure be properly documented (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017, and *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; *Kalyapin*, cited above, §§ 76-79; and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).

9. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion in application no. 27572/20 (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), and having taken into account the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

10. It discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence records and to achieve the objectives set out in the Code of Administrative Offences (CAO), that is to establish the suspects' identity (*Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable

rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention (see appended table), given the relevant well-established case-law of the Court.

13. These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the CAO; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations; *Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013; and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016, concerning disproportionate measures taken by the authorities against participants of public assemblies).

14. In view of the above findings, the Court considers that there is no need to deal separately with the remaining applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], no. 1253/04 and 2 others, § 96, 11 December 2014, and, as a recent example, *Akhtyamov and Others v. Russia* [Committee], no. 17105/18 and 8 others, §§ 15-16, 10 October 2022), the Court considers it reasonable to award to each of the applicants 3,900 euros (EUR) in respect of pecuniary and

non-pecuniary damage, costs and expenses, plus any tax that may be chargeable on that amount.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention concerning the fairness of the proceedings and alleged restrictions on the right to examine witnesses;

6. *Holds*
   (a) that the respondent State is to pay to each of the applicants, within three months, EUR 3,900 (three thousand and nine hundred euros), plus any tax that may be chargeable on that amount, in respect of pecuniary and non-pecuniary damage, costs and expenses, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 12 January 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
1.	74086/16 22/11/2016	**Grigoriy Viktorovich SEMENOV** 1966 Zboroshenko Nikolay Sergeyevich	From 1.30 p.m. on 12/12/2015 to 2.20 p.m. on 14/12/2015	Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Detention as an administrative suspect after the offence record had been compiled, until the hearing before the first instance court (see *Frumkin v. Russia*, no. 74568/12, §§ 149-52, 5 January 2016, and *Korneyeva v. Russia*, no. 72051/17, § 35, 8 October 2019).	March for change, Pushkinskaya Square, Moscow on 12/12/2015. Article 19.3 § 1 of CAO, fine of RUB 1,000. Final decision: Moscow City Court, 24/05/2016.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016).
2.	21493/19 10/04/2019	**Nikita Nikolayevich SHULGA** 1999 Zakhvatov Dmitriy Igorevich	From 3.30 p.m. to 7.30 p.m. on 29/07/2018	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation against the pension reform in Moscow on 29/07/2018. Article 20.2 § 5 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 10/10/2018.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (Karelin v. Russia, no. 926/08, §§ 69-84, 20 September 2016). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
3.	29376/19 20/05/2019	**Mikhail Denisovich CHICHKOV** 1992 Zakhvatov Dmitriy Igorevich	From 4.45 p.m. to the late evening on 29/07/2018	Detention as an administrative suspect in the absence of "exceptional circumstances" (see *Butkevich*, cited above, §§ 63-65).	Manifestation against the pension reform in Moscow on 29/07/2018. Article 20.2 § 5 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 22/11/2018.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (Karelin v. Russia, no. 926/08, §§ 69-84, 20 September 2016). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016).
4.	45323/19 08/08/2019	**Aleksey Anatolyevich KOBERNIK** 1979 Yatsenko Irina Aleksandrovna	1) From 2.40 p.m. to 7.20 p.m. on 16/12/2018 2) From 1.30 p.m. to 8.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	1) March for peace and manifestation in support of Mr Lev Ponomarev in Moscow on 16/12/2018. Article 20.2 § 5 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 08/02/2019. 2) Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 8 of CAO, 10 days of administrative detention. Final decision: Moscow City Court, 06/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in both sets of the administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
5.	2505/20 26/12/2019	**Valeriya Olegovna SHAKHOVTSEVA** 1997 Zboroshenko Nikolay Sergeyevich	From 01.00 p.m. to 9.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 5,000. Final decision: Moscow City Court, 22/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
6.	2871/20 22/12/2019	**Erna Tigranovna MURADYAN** 1996 Zboroshenko Nikolay Sergeyevich	From 01.00 p.m. to 9.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 22/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
7.	4573/20 30/12/2019	**Pavel Vladimirovich SAYGIN** 1999 Zakhvatov Dmitriy Igorevich	From 02.10 p.m. to 8.20 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22). Unacknowledged detention from 6.45 to 08.20 p.m.	Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 6.1 of CAO, 10 days of administrative detention. Final decision: Moscow City Court, 02/07/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
8.	7576/20 19/01/2020	**Yevgeniy Lvovich MAROCHKIN** 1982 Zakhvatov Dmitriy Igorevich	From 02.00 p.m. to 11.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 6.1 of CAO fine of RUB 20,000. Final decision: Moscow City Court, 26/09/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
9.	8634/20 30/01/2020	**Aleksey Vyacheslavovich ZHURBITSKIY** 2001 Yatsenko Irina Aleksandrovna	From 01.00 p.m. to 11.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow, on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 30/07/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
10.	8671/20 03/02/2020	**Ilya Vitalyevich NETESOV** 1992 Memorial Human Rights Centre	From 02.05 p.m. to 09.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22). No written record of the applicant's escort and detention (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017). Administrative offence record drawn up only on 18/06/2019.	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6 of CAO, fine of RUB 10,000. Final decision: Moscow City Court 26/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
11.	8680/20 27/01/2020	**Vladislav Viktorovich NIKOLAYCHUK** 1997 Memorial Human Rights Centre	From 01.25 p.m. to 09.30 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court 30/07/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
12.	8687/20 05/02/2020	**Kirill Igorevich VYATKIN** 1989 Memorial Human Rights Centre	From 01.50 p.m. to 11.50 on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court 08/11/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
13.	8894/20 30/01/2020	**Dmitriy Andreyevich POROTIKOV** 1995 Yatsenko Irina Aleksandrovna	From 02.30 to 10.30 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO fine of RUB 10,000. Final decision: Moscow City Court, 30/07/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
14.	9140/20 01/02/2020	**Ruslan Vladimirovich SHINKARENKO** 1995 Balog Natalya Andreyevna	From 01.45 to 09.20 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court 02/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
15.	9228/20 31/01/2020	**Ilya Yevgenyevich NATAROV** 1999 Memorial Human Rights Centre	From 02.05 p.m. on 12/06/2019 to 00.35 a.m. on 13/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 02/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
16.	9274/20 03/02/2020	**Stanislav Sergeyevich AVDEYEV** 1997 Memorial Human Rights Centre	From 00.50 to 6.25 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 22/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end date and time of unlawful detention	Specific defects (in addition to the absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO)	Public event Administrative conviction and penalty imposed Final decision (appeal)	Other complaints under well-established case-law
17.	9512/20 12/02/2020	**Mariya Andreyevna PLATONOVA** 2001 Memorial Human Rights Centre	From 3.30 p.m. on 12/06/2019 to 00.30 a.m. on 13/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 26/08/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
18.	25941/20 20/03/2020	**Fedor Vladimirovich MILYAYEV** 2000 Zakhvatov Dmitriy Igorevich	From 00.30 p.m. to 06.00 p.m. on 10/03/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22). Administrative arrest mentioned in the administrative offence record.	Manifestation against isolation of Russian Internet in Moscow on 10/03/2019. Article 20.2 § 5 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 10/12/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).
19.	27572/20 13/06/2020	**Yevgeniy Yuryevich KHUTORYANSKIY** 1979 Nechiporenko Natalya Aleksandrovna	From 01.50 p.m. to 9.00 p.m. on 12/06/2019	Detention as an administrative suspect in the absence of "exceptional circumstances" and beyond the three-hour statutory period (see *Butkevich*, cited above, §§ 63-65, and *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO, fine of RUB 10,000. Final decision: Moscow City Court, 16/10/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin*, cited above, §§ 69-84). Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42).